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Weingart Tower, LP et al., v. Axis/GFA

TENTATIVE RULING

The Motion for Judgment on the Pleadings is DENIED.

Introduction

On August 9, 2024, Plaintiffs Weingart Tower, LP and Weingart Tower II, LP filed a Complaint in this action.

On February 5, 2025, Plaintiffs filed the operative First Amended Complaint, adding Emmerson Construction, Inc. as a plaintiff and asserting five causes of action against Defendant AXIS/GFA Architecture & Design, Inc. and Does 1 through 100.

On April 14, 2025, AXIS filed a Cross-Complaint naming Cross-Defendant Robison Engineering, Inc. AXIS filed an Amended Cross-Complaint on June 24, 2025.

On July 28, 2025, Robison Engineering, Inc. filed a Special Answer pursuant to Code of Civil Procedure section 428.70.

On January 12, 2026, Cross-Defendant Robison Engineering, Inc. filed the instant Motion for Judgment on the Pleadings, seeking judgment as to Plaintiffs' entire First Amended Complaint.

No opposition has been filed.

Meet and Confer

Before filing a demurrer or a motion to strike, the demurring or moving party is required to meet and confer with the party who filed the pleading demurred to or the pleading that is subject to the motion to strike for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (CCP §§ 430.41)

The Declaration of the declaration of David Davidson, executed on January 12, 2026, sets forth the meet and confer efforts of counsel for the Defendants, and counsel's attempts to resolve the disputes informally by telephone. The Court finds that the declaration satisfies the requirement of Code of Civil Procedure section 430.41.

Legal Standard

A defendant may move for judgment on the pleadings where the court has no jurisdiction of the subject of the cause of action alleged in the complaint or the complaint does not state facts sufficient to constitute a cause of action against that defendant. (Code Civ. Proc., § 438 subd. (c)(1)(B).) A non-statutory motion for judgment on the pleadings may be made any time before or during trial. (Stoops v. Abbassi (2002) 100 Cal.App.4th 644, 650.) "Such motion may be made on the same ground as those supporting a general demurrer, i.e., that the pleading at issue fails to state facts sufficient to constitute a legally cognizable claim or defense."

(Ibid.)

The standard for ruling on a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer, that is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Bezirdjian v. O'Reilly (2010) 183 Cal.App.4th 316, 321-322, citing Schabarum v. California Legislature (1998) 60 Cal.App.4th 1205, 1216.)

Like demurrers, motions for judgment on the pleadings challenge the legal sufficiency of the allegations, not their veracity. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) The Court "must accept as true all material facts properly pleaded, but does not consider conclusions of law or fact, opinions, speculation, or allegations contrary to law or facts that are judicially noticed." (Stevenson Real Estate Services, Inc. v. CB Richard Ellis Real Estate Services, Inc. (2006) 138 Cal.App.4th 1215, 1219-1220.)

Standing

Section 438 does not permit any party to move against any pleading. Subdivision (b)(1) provides that "[a] party may move for judgment on the pleadings," but subdivision (c)(1) then specifies the permissible grounds by reference to the movant's status, and it recognizes only two categories of movant: a plaintiff moving against an answer (§ 438, subd. (c)(1)(A)), and a defendant moving against a complaint (§ 438, subd. (c)(1)(B)). The Legislature supplied no third category.

The ground REI invokes is available where "[t]he complaint does not state facts sufficient to constitute a cause of action against that defendant." (§ 438, subd. (c)(1)(B)(ii), italics added.) The qualifying phrase confines the motion to the movant's own exposure under the challenged pleading. REI has no exposure under the FAC. Plaintiffs did not sue REI, and REI could not suffer a judgment on any cause of action the FAC pleads. What REI actually seeks is judgment in favor of AXIS on claims asserted against AXIS – relief AXIS has not requested and has not joined.

REI's asserted authority is section 428.70, which provides that a third-party defendant "may, at the time he files his answer to the cross-complaint, file as a separate document a special answer alleging against the person who asserted the cause of action against the third-party plaintiff any defenses which the third-party plaintiff has to such cause of action." (§ 428.70, subd. (b).)

The statute is specific about the vehicle it creates. It authorizes a pleading — a special answer, filed at a fixed time, served on both the plaintiff and the third-party plaintiff. Having identified that mechanism with precision, the Legislature did not go on to authorize the third-party defendant to file dispositive motions against the plaintiff's complaint, and the Court will not supply that authority by implication. Administrative Management Services, Inc. v. Fidelity & Deposit Co. (1982) 129 Cal.App.3d 484, 488, on which REI relies, is consistent with this reading. That decision describes the purpose of section 428.70 as protecting

a third-party defendant against the third-party plaintiff's "failure or neglect to assert a proper defense." The protection it describes is the ability to assert those defenses, not to litigate the plaintiff's claims against the defendant on the defendant's behalf.

REI alternatively invokes the common law motion for judgment on the pleadings, on the premise that section 438's limitations do not bind it. (*Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650; *Smiley v. Citibank (South Dakota) N.A.* (1995) 11 Cal.4th 138, 145-146; *Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5.)

The common law motion escapes section 438's procedural prerequisites, not its substantive ground. *Stoops* and *Saltarelli* address when the motion may be brought. They say nothing about who may bring it. The traditional common law grounds are lack of subject matter jurisdiction, and that the complaint does not state facts sufficient to constitute a cause of action against the defendant. (*Korchemny v. Piterman* (2021) 68 Cal.App.5th 1032.) That second ground is identical in substance to section 438, subdivision (c)(1)(B)(ii). The motion operates as a "general demurrer" to the complaint when made by a defendant (*Sofias v. Bank of America* (1985) 172 Cal.App.3d 583), and "a defendant must show a complaint fails to state a cause of action" (*Korchemny*, supra, 68 Cal.App.5th 1032).

REI's theory assumes the common law motion to be broader than the statutory motion in the class of movants it admits and the relief it affords. No authority so holds. Because no statute prescribes the grounds or procedure for the common law motion, courts look to demurrer procedure as the closest analogue. (*People v. \$20,000 U.S. Currency* (1991) 235 Cal.App.3d 682.) A demurrer may be interposed only by "[t]he party against whom a complaint or cross-complaint has been filed." (§ 430.10.) Here, the First Amended Complaint has not been filed against REI.

REI lacks standing to move for judgment on the pleadings against the First Amended Complaint. Neither the statutory motion nor its common law counterpart is available to a party against whom the challenged pleading states no claim, and section 428.70 does not enlarge the class of parties who may bring one. Because standing is a threshold requirement, the Court does not reach any of the substantive arguments raised.

Conclusion

The Motion for Judgment on the Pleadings is DENIED.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at SMCDept224@lacourt.org indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.